

24STCV02081 24STCV02081

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Case Number: 24STCV02081 Hearing Date: August 27, 2026 Dept: 400

MOTION FOR LEAVE

The Court tenders the following decision

in the matter Jane K.C. Doe, et al. v. L.A. Service Taxi 24 Hrs, et al.,

Los Angeles County Superior Court case number 24STCV02081, set for hearing on August

27, 2026. Jane K.C. Doe (Plaintiff) moves for leave to file a corrected first

amended complaint (FAC) in this matter. L.A. Service Taxi 24 Hrs, et al. (collectively,

Defendants) have not filed an opposition. The motion is granted.

A.

Legal Standard

The court may, in its discretion

and after notice to the adverse party, allow, upon any terms as may be just, an

amendment to any pleading, including adding or striking out the name of any

party, or correcting a mistake in the name of a party, or a mistake in any

other respect. (Code Civ. Proc., § 473, subd. (a)(1).) California courts are

required to permit liberal amendment of pleadings in the interest of justice

between the parties to an action. (Code Civ. Proc., § 473, subd. (a); Dieckmann v. Superior Court (1985) 175

Cal.App.3d 345, 352.) "Public policy dictates that leave to amend be liberally

granted." (Centex Homes v. St. Paul Fire

& Marine Insurance Co. (2015) 237 Cal.App.4th 23, 32 (Centex Homes).)

Under California Rules of Court,

rule 3.1324, a motion to amend a pleading before trial must include the

following content: (1) a copy of the proposed amendment or amended pleading;

(2) a statement regarding what allegations in the previous pleading are

proposed to be deleted if any, and where they are located; and (3) a statement

regarding what allegations are proposed to be added to the previous pleading, if any, and where. Subdivision (b) of rule 3.1324 additionally requires that the motion be accompanied by a separate, supporting declaration, specifying the following: (1) the amendment's effect; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

B. Discussion

Plaintiff moves for an order granting her leave to file an FAC correcting the caption to restore her designation as “JANE K.C. DOE, by and through her Guardian Ad Litem, Bibiana Gonzalez.” (Carillo Decl. ¶ 7, Ex. A.) Plaintiff has complied with the procedural requirements of rule 3.1324(a) by providing a copy of the proposed amended pleading (*ibid.*) and a statement regarding the allegations to be added. Plaintiff has also satisfied the requirements of 3.1324(b). She has offered a declaration speaking to the proposed amendment's effect, why it is necessary and proper, and why it was not proposed earlier, namely that the relevant facts were discovered after Plaintiff's default judgment package was denied on April 30, 2026. (*Id.* ¶¶ 6–9.) Thus, Plaintiff's motion is procedurally proper. Accordingly, Plaintiff's motion is granted.

C.

Conclusion

The Court grants
the motion.